law for Muslims and Hindus and to civil law for Muslims. Akbar, as khalifa of the age, was the ultimate authority in the administration of justice, especially in criminal cases. At court, and as he travelled across the country, people would approach him for redress, and Akbar took his duties very seriously, asking to be reminded three times before he would finally confirm capital punishment. But as access to the Padshah was essentially limited, qazis, or judges, were appointed to try both civil and criminal cases throughout the empire.

Sharia made an unequivocal distinction between the Muslim and non-Muslim peoples of the country. All non-Muslims were tolerated as dhimmis, or 'the protected people', who were subject to the discriminatory jiziya tax. Two hundred and fifty years before Akbar, Alauddin Khalji had created the office of the sadr us-sudur, in whom rested the highest authority in disputes regarding religious laws. A hundred years before that, Iltutmish had established the office of the shaikh al-Islam to deal with religious issues, administration, and the delegation of the religious duties of the rulers. Akbar appointed Shaikh Abd un-Nabi to the important post of sadr while Shaikh Abdullah Sultanpuri, who had been appointed as the makhdum ul-mulk and shaikh al-Islam under Humayun, also remained in office under Akbar. These two men, who enjoyed at this stage an untouchable prestige as the leaders of the ulema, would be the ones whose fall would be most spectacular, once Akbar took stock of the reality of Hindustan and the many faiths and beliefs that surrounded him. In an earlier age his grandfather Babur had also mused about the people he found in Hindustan:

> Most of the inhabitants of Hindustan are pagans; they call a pagan a Hindu. Most Hindus believe in the transmigration of souls. All artisans, wage-earners, and officials are Hindus. In our countries, dwellers in the wilds (ie, nomads) get tribal names; here the settled people of the cultivated lands villages get tribal (caste) names. Again every artisan there follows the trade that has come down to him from forefather to forefather.

The most populous people, as noted by Babur and then by Akbar, were the Hindus, among whom a strict caste system existed. For them, justice at the local level, in the form of councils and panchayats, continued untouched. Hindu and other non-Muslim communities also offered legal advisers when